



मुद्रांक विधी : प्रवि.जा. इलेक्ट्रॉनिक सेंटर

ए. पी. एच. पी. पांडा बटाटा मार्केट, तुर्क, नवी मुंबई-४००७०५. फोन :- ७९८००११

9 JUL 2002

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दिनांक

हस्ता / श्री. Mv. Mrs. Jaubhar Hemra

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12/92

श्री. अनुराधा बा. पिगट

PARTNERSHIP DEED

This Deed of Partnership is made and entered into at Mumbai on 19th Day of July in the year Two Thousand Two by and between:-

1. MR. JAWAHAR HARIRAM HEMRAJANI, Indian Inhabitant, residing at 1003, Jimi Tower, Sector No. 4, Vashi, Navi Mumbai, hereinafter in this deed referred to as the "Party of the First Part";

AND

2. MR. KAMLESH ARJUN CHOUDHARY, Indian Inhabitant, residing at 1002/1003, Kalinga Tower, Nirmal Nagar, Goregaon Mulund Link Road, Mulund (West), Mumbai - 400 080, hereinafter in this deed referred to as the "Party of the Second Part".

Jawhar Hemrajani

Kamlesh



Contd. 2/-



All adults and hereinafter in this Deed jointly and severally referred to as "the Partners", which expression shall unless repugnant to the context or meaning thereof, be deemed to mean and include their legal heirs, executors, nominees, administrators and/or assignees, respectively.

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AND WHEREAS the above parties intend to carry on the business of Structural Glazing & Cladding at A-708, Gateway Plaza, Hiranandani complex, Powai, Mumbai from 19th Day of JULY, Two Thousand Two in the name and style of M/S. GLASS WALL SYSTEM

Ramfesh
AND WHEREAS the parties hereto hereby mutually agree on the terms and conditions of partnership hereafter appearing.



मुद्रांक विधी : प्रलिमा इलेक्ट्रॉनिक सेंटर

ड. पी. एम. सी. कांदा बटाटा मार्केट, पुणे, नवी मुंबई-४०००३१

दिनांक ४९६ Mr. & Mrs. Jawahar Hemrajani

पुणे / श्री.

9 JUL 2002



ABP

संख्या १२/९२

श्री. अनुराधा बा. निवृत्त

1) NAME :- The name and style of the firm of partnership shall be " M/S. GLASS WALL SYSTEM"

2) COMMENCEMENT :- The partnership firm shall be deemed to have commenced business from 19 th Day of July Two Thousand Two

3) OBJECTS :- The partnership business shall be of structural glazing & cladding etc. and any other activity of similar nature or any other business as the partners may hereinafter mutually agree upon.

4) PLACE :- The partnership business shall be carried at its registered office at A-708, Gateway Plaza, Hiranandani Complex, Powai, Mumbai or at such place or places which the partners may mutually agree upon from time to time.

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Jawahar Hemrajani



5) DURATION :- The duration of the partnership shall be "AT WILL" but in case any partner desirous to retire from partnership, shall be at liberty to do so by giving one month's notice in writing to the other partner.

6) SHARE IN PROFIT AND LOSSES :- The net profit or loss of the partnership business shall be divided amongst the partners in the following proportion.

NAME OF THE PARTNERS	SHARE OF PROFIT & LOSS
1. MR. JAWAHAR HEMRAJANI	50.00 %
2. MR. KAMLESH CHOUDHARY	50.00 %
TOTAL	100.00 %

Kamlesh

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मुद्रांक विधि : प्रतिष्ठा इन्स्टीट्यूट सर्विस
फोन : ७९८ ००११

19 JUL 2002

492 Mr. & Mrs. Jawahar Hemrajani

ABP
रजिस्ट्रार
श्री. अनुराधा बा. विगड
12/92



7) CAPITAL :- The initial capital of the partnership firm shall be Rs. 50,000/- and contributed by the partners in their profit sharing ratio. In future capital will be contributed in profit sharing ratio/or any other ratio as mutually agreed by the partners as and when considered necessary and expedient for the purpose of carrying on the partnership business and the same shall carry interest as may be mutually agreed upon by the parties from time to time.

8) INTEREST :- The firm shall pay simple Interest @ 12% per annum or at such other rate as may be mutually agreed upon or prescribed u/s 40 (b) of the Income Tax Act, 1961 on the amount standing to the credit of capital or loan account of the partners and the profit or losses of the business of the firm shall be arrived at after accounting for the interest so payable as a business Expenditure of the firm.

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Every year the interest shall be paid to the partners on the last day of the accounting year. If there is any debit balance in the account of any partner, interest at the same rate shall be payable by him.

9) REMUNERATION TO PARTNERS :- It is hereby agreed by all the partners to get the Remuneration as per mutual understanding, which shall not exceed the limits mentioned as under.

1. The maximum yearly remuneration payable to working partners shall be calculated as percentage of the book profits for each accounting year in the following manner.

Upto Rs. 75,000/- of book profit 90 %

Next, Rs. 75,000/- of book profit 60 %

Balance Amount of book profit 40 %

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मुद्रांक विक्री : प्रि.भा इरोवस सेंटर

फोन : ०१६ ००११

19 JUL 2002

ए. पी. एच. सी. कांदा बटाटा मार्केट, तम्र, नवी मुम्बई-४०००३५.

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वित्तिका

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Mr. & Mrs. Jantehar Hemrajani

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श्री. अनुराधा बा. विगड

II. For the purpose of the above calculation the book profit shall be calculated on the basis of book profit as shown by the books and computed as provided in section 28 to section 44D (chapter IV) of the Income Tax Act 1961, without deducting the remuneration paid or payable to the partner's for relevant accounting year.

III. The partners shall be entitled to increase or reduce the above remuneration and may agree to pay remuneration to other partner. The parties hereto may also agree to revise the mode of calculating the above remuneration as mutually agreed upon.

IV. The partners shall be entitled to withdraw any amount during the year from the partnership towards their yearly remuneration, share of profit or out of their loan account from time to time as may be decided by the partners by mutual consent.

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10. BORROWINGS :- The partnership firm may time to time borrow or lend from/to persons, firms, companies or banks such monies, as may be required for the purpose of the business as deposit or loan, at an agreed rate of interest but not for the purpose which is outside or beyond the scope of the partnership or is otherwise not directly connected with the partnership business.

11. BANK ACCOUNT :- The bankers of the partnership firm shall be such bank/banks as the partners may from time to time unanimously agree upon. Further, all partnership monies not required for current expenses and securities for money shall as and when received be paid and deposited into the bank account in the credit of the partnership account. All cheques on such bank account shall be drawn and such bank account shall be operated in the firm name by and either or under the joint signatures of the parties as may be agreed upon between the parties hereto.

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मुद्रांक विक्री : प्रतिमा इलेक्ट्रॉनिक्स सेंटर 9 JUL 2002

ए. पी. एम. सी. कांदा बटाटा मार्केट, मुंबई, पिन कोड :- ४०० ००११
 राज. क्र. ५९३ Mr. & Mrs. Jawahar Hemrajani
 हस्ता / श्री.

ABP 12/92
 डॉ. अनुराधा वा. पिंगड

12. ACCOUNTING YEAR :- The accounts of the partnership firm shall be taken annually on 31st March every year or at such times as all the partners may from time to time determine.

13. ACCOUNTS :- The books of accounts of the partnership firm shall be kept in the safe custody of the partners at the Registered Office at ___A-708, Gateway Plaza, Hiranandani Complex, Powai, Mumbai, and each party shall have free access over it.

14. FINAL ACCOUNTS :- At the end of the accounting year as aforesaid an account will be taken of all the assets and liabilities and of the profits or losses of the partnership for the year and shall be signed by each partner. Such account can be

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reopened only if any error is discovered in which such error can be corrected. For the purpose of determination of profit/Loss to the partner, the profit/loss for the part of the accounting year period shall be deemed to have occurred from month to month basis.

15. DEATH OF PARTNER :- Death, retirement or insolvency of any partner shall not dissolve the firm but shall be continued by the remaining partner.

16. ADMISSION OF NEW PARTNER :- The partners hereto may admit any new partner or partners upon such terms and conditions as may be agreed upon.

17. ARBITRATION :- If any dispute arises between the parties hereto in respect of the conduct of the business of partnership or in respect of interpretation, operation or enforcement of any of the terms or condition of this deed or in respect of any other

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matter, cause or thing whatsoever not herein otherwise provided for, the same shall be referred for adjudication to the arbitration subject to the provisions of the Indian Arbitration Act, 1940 and/or any statutory modification or re-enactment thereof for the time being in force whose decision shall be binding on the parties and their legal representatives.

18. ALTERATION OR ADDITION OF ANY CLAUSE OF THIS PARTNERSHIP DEED :- NOTWITHSTANDING anything stated or provided herein the parties shall have full power and discretion to modify, alter or vary the terms and conditions of this partnership deed by executing the supplementary deed and such deed when executed shall have effect unless otherwise provided from the first day of accounting year in which such supplementary deed is executed and the same shall form the part of this deed of partnership.

19. No partner shall without the previous written consent of the others :
- (a) engage directly or indirectly in any business competing with that of the partnership;
 - (b) engage or except for the gross misconduct dismiss, any employee of the partnership;
 - (c) lend any of the moneys or deliver upon credit any goods of the firm to any person or persons whom any other partner shall have previously in writing, forbidden him to trust;
 - (d) employ any of the moneys, goods or effects of the firm or employ any of the moneys, goods or effects of the partnership or pledge the credit thereof except in the ordinary course of business and upon the account or for the benefit of the partnership;
 - (e) give any security or promise for payment of money on account of the firm except in the ordinary course of the business;
 - (f) draw, accept or endorse any bill of exchange, hundi, promissory note or

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other negotiable instrument on account of the firm;

(g) compromise or compound or release or discharge any debt due to the partnership;

(h) enter into any bond or become bail or surety for any person or knowingly cause or suffer to be done anything whereby the partnership property may be endangered;

20. Each partner shall -

(a) diligently attend to the business of the partnership and faithfully engage himself therein;

(b) punctually pay his separate debts and indemnify the other partners and the firm against the same and all expenses thereof;

(c) forthwith pay all monies, cheques and negotiable instruments received by him on account of the firm into the firm's bank account;

(d) each partner shall be just and faithful to the other partners in all transactions relating to the partnership and at all times give to the other partners full information and truthful explanations and accounts on all matters relating to the affairs of the partnership and afford every assistance in his power in carrying on the business of the partnership for their mutual advantage.

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Handwritten signature in blue ink.



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IN WITNESS WHEREOF The parties here to have set and subscribed their hands the day and year herein above written.

SIGNED, SEALED AND DELIVERED X

by the within named MR. JAWAHAR HEMRAJANI
in the presence of

X
X
X

Jawahar Hemrajani
Jawahar Hemrajani
Jawahar Hemrajani
Jawahar Hemrajani

SIGNED, SEALED AND DELIVERED X

by the within named MR. KAMLESH CHOUDHARY
in the presence of

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X
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Kamlesh
Kamlesh
Kamlesh



Identified by me

- 9 JAN 2003

BEFORE ME

Rama

MRS. RAMA S. PENDKAL, KAR
M.A. B.Ed. LL.M.
NOTARY & ADVOCATE
SUPREME COURT OF INDIA
HIGH COURT OF BOMBAY
Rama Niwas SS-4/245, Sector - 2,
Vashi, New Bombay - 400 703

Rama
Mr. Hemant S. Pendkalkar
B.A., LL. B.
ADVOCATE HIGH COURT
Rama Niwas, SS-4/245, Sector - 2,
Vashi, New Bombay - 400 703.

Noted & Registered
No. 64/2003



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